



OFFICE OF THE COMPTROLLER
CITY OF ST. LOUIS



DONNA M.C. BARINGER
Comptroller

212 City Hall
(314) 622-4389
FAX 622-4026

June 9, 2026

The Honorable Board of
Estimate & Apportionment
City Hall, Room 212
St. Louis, MO 63103
ATTN: Crystal Hurst
RE: Lease Agreement for June 17, 2026 Agenda

Dear Honorable Board:

Please include on the agenda of the next regular Board of Estimate and Apportionment meeting the attached board bill (#27) and lease agreement related to the Homer G. Phillips Senior Apartments building located at 2601 Whittier Street, St. Louis, MO 63113. Please let me know if anything else is needed. Thank you for your consideration.

- | | |
|------------------------------|--|
| 1. Vendor's Name & Address | CIG Homer I LLC
1540 Route 202, Suite 10
Pomona, New York 10970 |
| 2. Description of Contract | Lease of 2601 Whittier Street 63113. |
| 3. Duration of Contract | July 1, 2026 through January 1, 2100. |
| 4. Contract/Amendment Amount | Fifty-thousand dollars (\$50,000) per year. |
| 5. Ordinance Authority: | N/A |
| 6. Fund Number: | 1000 |
| 7. Center Number: | 160000 |
| 8. Account Number: | 470001 |
| 9. Department Number: | 160 |
| 10. Original Document Number | 33622 |
| 11. MBE/DBE | N/A |
| 12. Insurance Information | \$3 million person / \$5 million occurrence /
\$10 million property |
| 13. Bonding Information: | N/A |

Sincerely,

Ryan Coleman
Deputy Comptroller for Finance & Development
colemanr@stlouis-mo.gov
314-657-3408

Summary

Board Bill Number 27

Introduced by Alderwoman Sharon Tyus

May 21, 2026

An ordinance providing for the execution and delivery of an Acknowledgement and Consent to assignment of the Amended and Restated Lease for the multi-family apartment building commonly known as the Homer G. Phillips Senior Apartments located at 2601 Whittier Street, and containing an Emergency Clause.

BOARD BILL NUMBER 27 INTRODUCED BY ALDERWOMAN SHARON TYUS

1 An ordinance providing for the execution and delivery of an Acknowledgement and Consent to
2 assignment of the Amended and Restated Lease for the multi-family apartment building commonly
3 known as the Homer G. Phillips Senior Apartments located at 2601 Whittier Street, and containing
4 an Emergency Clause.

5 **WHEREAS**, the City of St. Louis (the “City”) previously entered into an Amended and
6 Restated Lease dated as of December 1, 2001 (the “Lease”), pursuant to which the City, as
7 landlord, leased the multi-family apartment building commonly known as the Homer G. Phillips
8 Senior Apartments located at 2601 Whittier Street to Homer G. Phillips Dignity House, L.P.
9 (“HGPDH”), as tenant; and

10 **WHEREAS**, the Lease provides that the tenant may assign its interest in the Lease to any
11 party with the prior written approval of the City’s Board of Estimate and Apportionment;

12 **WHEREAS**, HGPDH subsequently assigned its interest in the Lease to EPV2 Dignity
13 House, LLC, a Maine limited liability company (“EPV2”), with the City’s consent; and

14 **WHEREAS**, EPV2 now desires to assign its interest in the Lease to CIG Homer I LLC,
15 a Missouri limited liability company (“Assignee”), pursuant to an Assignment of Amended and
16 Restated Lease substantially in the form attached hereto as **Exhibit 1** (the “Assignment”); and

17 **WHEREAS**, the Assignment includes an Acknowledgement and Consent of the Board
18 of Estimate and Apportionment of the City (the “Consent”), which provides that the City
19 acknowledges and consents to the assignment of EPV2’s interest in the Lease to Assignee;

20 **WHEREAS**, the Board of Aldermen wishes to express, as provided herein, the consent
21 of the City to the execution and delivery of the Consent to the Assignment;

22 **BE IT ORDAINED BY THE CITY OF ST. LOUIS, MISSOURI, AS FOLLOWS:**

1 **SECTION ONE.** The City of St. Louis hereby consents to the execution and delivery of
2 the Consent to the Assignment, in substantially the form attached hereto as **Exhibit 1**.

3 **SECTION TWO.** Subject to any necessary approvals or consents, or revisions as
4 approved by the City Counselor of the Consent to the Assignment, the Secretary of the Board of
5 Estimate and Apportionment is hereby authorized and directed to execute and deliver, on behalf
6 of the City, the Consent to the Assignment, in substantially the form attached hereto as **Exhibit 1**
7 and such other documents as may be approved by the City Counselor and which are not
8 inconsistent herewith and which are incidental to and related to the transactions contemplated by
9 the Consent to the Assignment.

10 **SECTION THREE.** This ordinance, being deemed necessary for the immediate
11 preservation of the public peace and safety, is declared to be an emergency ordinance under and
12 pursuant to Sections 19 and 20 of Article IV of the Charter of the City of St. Louis.

BOARD BILL NUMBER 27
EXHIBIT 1

ASSIGNMENT OF AMENDED AND RESTATED LEASE

[See attached.]

[SPACE ABOVE THE LINE FOR RECORDING PURPOSES ONLY]

1. **Title of Document:** **Assignment of Amended and Restated Lease**
2. **Date of Document:** []
3. **Grantor(s)** (for indexing purposes only): **EPV2 DIGNITY HOUSE, LLC**
a Missouri limited liability company
4. **Grantee(s)** (for indexing purposes only): **CIG HOMER I LLC,**
a Missouri limited liability company
5. **Statutory Mailing Address(es):**

<u>Grantee(s):</u> CIG Homer I LLC 1540 Route 202, Suite 10 Pomona, New York 10970 Attn: Jason Schneid	<u>Grantor(s):</u> EPV2 Dignity House, LLC 125 John Robert Road, Suite 12 South Portland, Maine 04106 Attn: Laura E. Burns
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6. **Legal description:** See Exhibit A
7. **Reference(s) to Instrument Number:**
Book 1731M, Page 5999
Book 1731M, Page 6023
Book 1731M, Page 6033
Book 1731M, Page 6040
Book 03052004, Page 0268
Book 0172020 Page 0031
Book 0172020 Page 0035

This cover page is attached solely for the purpose of complying with the requirements stated in §59.310.2; 59.313.2 RSMo. of the Missouri Recording Act

ASSIGNMENT OF AMENDED AND RESTATED LEASE

This **ASSIGNMENT OF AMENDED AND RESTATED LEASE** (this "Assignment") is made and entered into as of this [] day of [], 2026 (the "Effective Date"), by and between **EPV2 DIGNITY HOUSE, LLC**, a Maine limited liability company (the "Assignor") and **CIG HOMER I LLC**, a Missouri limited liability company (the "Assignee"), with reference to the following recitals of fact:

WITNESSETH:

WHEREAS, the City of St. Louis, Missouri (the "City") is the fee simple owner of certain parcel of real property and improvements thereon located in the City of St. Louis with an apartment building situated thereon that is commonly referred to as the Homer G. Phillips Dignity House, which real property is more thoroughly and legally described on Exhibit A, attached hereto and incorporated herein by this reference ("Property").

WHEREAS, the City, as landlord, and Homer G. Phillips Dignity House, L.P. ("HGPDPH"), as tenant, entered into that certain Amended and Restated Lease dated as of December 1, 2001, which lease was approved by the Board of Aldermen of the City pursuant to Ordinance No. 64913, dated March 24, 2000, as evidenced by that certain Memorandum of Amended and Restated Lease and filed with the Recorder of Deeds, City of St. Louis (the "Recorder's Office") on December 11, 2001, in Book 1731M, Page 5999, as amended by that certain Amendment No. 1 to Amended and Restated Lease by and between the City and HGPDPH dated December 1, 2001, and filed with the Recorder's Office on December 11, 2001, in Book 1731, Page 6023, as assigned pursuant to that certain Assignment of Amended and Restated Lease dated as of December 1, 2001, by and between HGPDPH, as assignor, and W.A.T. Dignity Urban Redevelopment Corporation, a Missouri urban redevelopment corporation ("W.A.T."), as assignee, and filed with the Recorder's Office on December 11, 2001, in Book 1731M, Page 6033, as further assigned pursuant to that certain Assignment of Amended and Restated Lease dated as of December 1, 2001, by and between W.A.T., as assignor, and HGPDPH, as assignee, and filed with the Recorder's Office on December 11, 2001, in Book 1731M, Page 6040 as further assigned pursuant to that certain Assignment of Amended and Restated Lease dated as of January 6, 2020, by and between HGPDPH, as assignor, and Assignor, as assignee, and filed with the Recorder's Office on January 7, 2020 in Book 01072020, Page 0031 as modified by Amendment No. 4 to Amended and Restated Lease, by and between the City, as landlord, and Assignor, as tenant, recorded January 7, 2020 in Book 01072020, Page 0035 (collectively, as amended and assigned, the "Lease").

WHEREAS, the Assignor has agreed to transfer its leasehold interest in the Property to the Assignee pursuant to the terms of that certain Purchase Agreement dated September 17, 2024, by and between Assignor and Assignee, as amended (the "Purchase Agreement").

WHEREAS, Assignor now desires to assign all of its right, title, and interest in the Property and the Lease to Assignee, and Assignee desires to accept and assume all of Assignor's right, title and interest in the Property and the Lease, under the terms and conditions of this Assignment.

WHEREAS, The Assignee intends to continue to operate a multi-family apartment housing project consisting of (i) approximately two hundred twenty (220) apartments in accordance with a Low-Income Housing Tax Credit Land Use Restriction Agreement executed by and between HGPDPH and the Missouri Housing Development Commission ("MHDC") according to instrument filed with the Recorder's Office on March 5, 2004 in Book 03052004, Page 0268 and subsequent notice filed with the Recorder's Office on December 5, 2013 in Book 12052013, Page 103, as modified by that certain Assignment and Assumption Agreement dated January 6, 2020 by HGPDPH, MHDC, and Assignor filed with the Recorder's Office on January 7, 2020 in Book 01072020, Page 0036; and an Amended and Restated Land

Use Restriction Agreement dated February 1, 2010 and filed with the Recorder's Office on March 8, 2010 in Book 03082010, Page 340, by and among the Industrial Development Authority of the City of St. Louis, Missouri ("IDA"), HGPDPH, Homer G. Phillips Historic Restoration, L.P., a limited partnership ("Restoration") and U.S. Bank National Association, a national banking association, as modified by that certain Assignment, Assumption and Release Agreement dated January 6, 2020 by and among IDA, HGPDPH, Restoration, U.S. Bank, and Assignor, filed with the Recorder's Office in Book 01072020, Page 0037, Amendment of Land Use Restriction Agreement dated January 6, 2020 and filed with the Recorder's Office with the Recorder's Office January 7, 2020, in Book 01072020, Page 0030. and (ii) approximately two thousand five hundred (2,500) square feet of commercial rental space in a portion of the Premises.

NOW, THEREFORE, for and in consideration of the premises, and the mutual covenants and agreements herein contained, the parties hereto agree and provide, as follows:

1. **Capitalized Terms.** All capitalized terms that are not defined in this Assignment shall have the meaning ascribed to such term in the Lease.

2. **Assignment of Lease.** Assignor hereby assigns, transfers, delivers and sets over to Assignee, its legal representatives, successors and assigns, all of the Assignor's rights, title and interest as Tenant in, to and under the Lease, from and after the Effective Date, subject to the terms, covenants, conditions and provisions thereof, and subject to the liens and encumbrances on the Property as described in **Exhibit B.**

3. **Assumption of Lease.** Assignee hereby assumes the Lease and accepts the foregoing assignment of the Lease, including all of Assignor's rights, title and interest in the Lease, from and after the Effective Date, subject to the terms, covenants, conditions and provisions thereof, and subject to the liens and encumbrances on the Property as described in **Exhibit B**, and specifically covenants and agrees as of the Effective Date to perform and be bound by all the terms, covenants and conditions of the Lease to be observed, kept or performed by the Assignor from and after the Effective Date.

4. **Indemnification and Release.** Assignor hereby agrees to indemnify, defend, protect and hold harmless the Assignee and each of its members, officers, agents, employees, successors and assigns from and against any loss, cost, damage, liability, fine, penalty, suit, action, cause of action or expense, including, without limitation, reasonable attorneys' fees, court costs, costs of investigation and costs of appeal, arising or incurred as the result of any act or liability with respect to the duties, responsibilities or requirements of Assignor under the Lease prior to the Effective Date. Assignee hereby agrees to indemnify, defined, protect and hold harmless the Assignor and each of its partners, officers, agents, employees, successors and assigns from and against any loss, cost, damage, liability, fine, penalty, suit, action, cause of action or expense, including, without limitation, reasonable attorneys' fees, court costs, costs of investigation and costs of appeal, arising or incurred as the result of any act, event or liability with respect to the Lease subsequent to the Effective Date.

5. **Rent.** On or before December 31st of each year during the Term of the Lease, Assignee, or Assignee's designated agent, shall certify to the St. Louis City Comptroller's Office, or any successor or designee of such office, that the rent charged to residential tenants of the Premises is reasonable in relation to rent currently being charged in the private market, taking into account the location, size, type, quality, amenities, facilities, management, and maintenance service of the Premises. Said certification shall be made on a form that is substantially equivalent to the Rent Certification attached hereto as **Exhibit C.** In the event that Assignee would fail to transmit the Rent Certification on or before December 31st of any particular year, the Comptroller's Office of the City of St. Louis, or any other governmental body acting on behalf of the City, shall have the right to send a notice to Assignee (at its relevant taxing address maintained by the

City Assessor's Office) notifying Assignee of its failure to transmit the required Rent Certification, and if the Assignee were to fail to deliver the required Rent Certification within thirty (30) days thereafter, said failure shall, subject to any cure rights of a lender with a mortgage interest in the Lease, then be deemed to be a default under the Lease.

6. Miscellaneous. The recitals set forth herein are true and accurate and are incorporated by reference. This Assignment shall be binding upon and shall inure to the benefit of the parties hereto and their respective legal representatives, successors and assigns. This Assignment shall be construed in accordance with and governed by the laws of the State of Missouri. The parties hereto hereby agree to execute such other documents and perform such other acts as may be reasonably necessary to carry out the purposes of this Assignment. This Assignment represents the entire agreement between the parties with respect to the subject matter of this Assignment and supersedes all prior oral or written agreements, understandings, representations, and covenants. All personal pronouns used in this Assignment, whether used in the masculine, feminine or neuter gender, shall include all other genders; the singular shall include the plural; and the plural shall include the singular. Titles of sections in this Assignment are for convenience only, and neither limit nor amplify the provisions of this Assignment.

[remainder of page intentionally blank, signature page follows]

**ACKNOWLEDGEMENT AND CONSENT OF THE BOARD OF ESTIMATE AND
APPORTIONMENT OF THE CITY OF ST. LOUIS**

Unless expressly defined herein, all capitalized terms used in this Acknowledgement and Consent of the Board of Estimate and Apportionment of the City of St. Louis (the "City Consent") shall have the meanings ascribed to them in the Assignment of Amended and Restated Lease by and between the Assignor and the Assignee to which this City Consent is attached (the "Agreement"). The undersigned hereby acknowledges and consents to the assignment of the Assignor's interest as tenant in and under the Lease to the Assignee, and assignment and assumption thereof, from and after the Effective Date of the Assignment.

Dated: _____, 2026.

**BOARD OF ESTIMATE AND APPORTIONMENT
OF THE CITY OF ST. LOUIS**

By: _____
Name: Crystal Hurst
Title: Secretary, Board of Estimate and Apportionment

Approved as to form:
City Counselor

By: _____
Name: _____
Title: _____

EXHIBIT A

Legal Description

PARCEL A

A LEGAL DESCRIPTION OF THE TRACT OF LAND IN BLOCKS 6 AND 7 OF SUBDIVISION OF THE EASTERN PORTION OF PROPERTY BELONGING TO THE ESTATE OF HONORABLE ROBERT WASH, DECEASED, SITUATED IN THE GRAND PRAIRIE COMMON FIELDS (RECORDED IN PLAT BOOK 6, PAGE 89) AND BEING THE FORMER HOMER G. PHILLIPS SITE, BY ORDINANCES 33812, 33363 AND 47509, EXCEPTING THEREFROM A PARCEL OF LAND CONTAINING THE FORMER HOSPITAL'S NURSE RESIDENCE (PRESENTLY LEASED BY CITY TO ANNIE MALONE CHILDREN HOME BY ORDINANCE 59437), EXCEPTING ALSO THEREFROM A PARCEL OF LAND CONTAINING THE PRESENT HOMER G. PHILLIPS CLINIC BUILDING, SAID TRACT BEING PART OF CITY BLOCKS 3675 AND 3676 AND ALSO VACATED EASTERN PORTION OF COTTAGE AVENUE BY ORDINANCE 39375, VACATED EAST WEST ALLEY IN CITY BLOCK 3675 BY ORDINANCE 33812, VACATED EAST WEST ALLEY AND NORTHERN PORTION OF NORTH SOUTH ALLEY IN CITY BLOCK 3676 BY ORDINANCES 33812, AND BEING MORE FULLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE WESTERN RIGHT OF WAY LINE OF WHITTIER STREET, 60 FEET WIDE AND THE SOUTHERN RIGHT OF WAY LINE OF KENNERLY AVENUE, 70 FEET WIDE, THENCE SOUTH 30 DEGREES 00 MINUTES 00 SECONDS WEST ALONG SAID WESTERN LINE OF WHITTIER STREET, A DISTANCE OF 608.31 FEET TO A POINT IN THE FORMER NORTHERN RIGHT OF WAY LINE OF ST. FERDINAND AVENUE, 50 FEET WIDE; THENCE NORTH 59 DEGREES 58 MINUTES 35 SECONDS WEST ALONG SAID NORTHERN LINE OF ST. FERDINAND AVENUE, A DISTANCE OF 135.50 FEET TO A POINT; SAID POINT BEING 10 FEET EAST OF SAID CLINIC BUILDING; THENCE NORTH 30 DEGREES 04 MINUTES 04 SECONDS EAST ALONG A LINE PARALLEL TO AND 10 FEET EAST OF THE SAID CLINIC BUILDING A DISTANCE OF 36.46 FEET TO A POINT, SAID POINT BEING 10 FEET NORTH AND 10 FEET EAST OF NORTH EASTERN CORNER OF SAID CLINIC BUILDING; THENCE NORTH 59 DEGREES 47 MINUTES 24 SECONDS WEST ALONG A LINE PARALLEL TO AND 10 FEET NORTH OF THE CLINIC BUILDING A DISTANCE OF 34.05 FEET TO A POINT; THENCE NORTH 30 DEGREES 18 MINUTES 48 SECONDS EAST ALONG A LINE PARALLEL TO AND 10 FEET EAST OF ENCLOSED WALKWAY BETWEEN SAID CLINIC BUILDING AND FORMER HOMER G. PHILLIPS HOSPITAL BUILDING A DISTANCE OF 89.50 FEET TO A POINT; THENCE NORTH 60 DEGREES 57 MINUTES 11 SECONDS WEST ALONG A LINE PARALLEL TO AND ON THE SOUTHERN LINE OF FORMER HOMER G. PHILLIPS HOSPITAL A DISTANCE OF 30.38 FEET TO A POINT; THENCE SOUTH 30 DEGREES 00 MINUTES 31 SECONDS WEST ALONG A LINE PARALLEL TO AND 10 FEET WEST OF ENCLOSED WALKWAY BETWEEN SAID CLINIC BUILDING AND FORMER HOMER G. PHILLIPS HOSPITAL A DISTANCE OF 89.53 FEET TO A POINT; THENCE NORTH 59 DEGREES 56 MINUTES 45 SECONDS WEST ALONG A LINE PARALLEL TO AND 10 FEET NORTH OF SAID CLINIC BUILDING A DISTANCE OF 55.62 FEET TO A POINT, SAID POINT BEING 10 FEET NORTH AND 10 FEET WEST OF NORTHWESTERN CORNER OF SAID CLINIC BUILDING, THENCE SOUTH 29 DEGREES 57 MINUTES 11 SECONDS WEST ALONG A LINE PARALLEL TO AND 10 FEET WEST OF THE CLINIC BUILDING A

Exhibit A

DISTANCE OF 36.07 TO A POINT IN THE FORMER NORTHERN RIGHT OF WAY LINE OF ST. FERDINAND AVENUE 50 FEET WIDE; THENCE NORTH 59 DEGREES 58 MINUTES 35 SECONDS WEST ALONG SAID FORMER NORTHERN LINE OF SAID AVENUE A DISTANCE OF 134.23 FEET TO A POINT IN THE EASTERN LINE OF VACATED NORTH SOUTH 15 FEET WIDE ALLEY IN CITY BLOCK 3676; THENCE NORTH 29 DEGREES 01 MINUTES 46 SECONDS EAST ALONG SAID EASTERN LINE OF SAID NORTH SOUTH ALLEY, A DISTANCE OF 179.17 FEET TO A POINT; THENCE NORTH 59 DEGREES 58 MINUTES 35 SECONDS WEST, A DISTANCE OF 30.00 FEET TO A POINT; THENCE NORTH 29 DEGREES 01 MINUTES 46 SECONDS EAST, A DISTANCE OF 100.00 FEET TO A POINT IN THE SOUTHERN RIGHT OF WAY LINE OF COTTAGE AVENUE 50 FEET WIDE; THENCE SOUTH 59 DEGREES 58 MINUTES 35 SECONDS EAST, ALONG SAID SOUTHERN LINE OF COTTAGE AVENUE, A DISTANCE OF 30.00 FEET TO A POINT; THENCE NORTH 29 DEGREES 01 MINUTES 46 SECONDS EAST ALONG SAID EASTERN LINE OF COTTAGE AVENUE AND CONTINUING ALONG THE EASTERN RIGHT OF WAY LINE OF NORTH SOUTH 15 FEET WIDE ALLEY IN CITY BLOCK 3675 A DISTANCE OF 329.25 FEET TO A POINT IN THE SOUTHERN RIGHT OF WAY LINE OF KENNERLY AVENUE, 70 FEET WIDE; THEN SOUTH 59 DEGREES 58 MINUTES 35 SECONDS EAST ALONG SAID SOUTHERN LINE OF KENNERLY AVENUE, A DISTANCE OF 399.53 FEET TO THE POINT OF BEGINNING AND CONTAINING 235,876.71 SQUARE FEET OR 5.415 ACRES MORE OR LESS.

PARCEL B

A TRACK OF LAND IN CITY BLOCK 3677 AND BEING IN BLOCK 5 OF WASH'S ESTATE SUBDIVISION AND BEING ALL OF LOTS 1 THROUGH 8 AND SOUTHERN PART OF LOT 9, AND LOTS 12 THROUGH 14 AND LOTS 39 THROUGH 41 AND THAT PORTION OF THE NORTH SOUTH ALLEY VACATED BY ORDINANCE 47509 AND THE WESTERN PORTION OF THE EAST WEST ALLEY VACATED BY ORDINANCE 47509 ABUTTING AFORESAID LOTS 12 THROUGH 14 AND LOTS 39 THROUGH 41 AND MORE FULLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE INTERSECTION OF THE LINE OF NORTH MARKET STREET, 50 FEET WIDE, AND THE EASTERN LINE OF ANNE MALONE DRIVE, 60 FEET WIDE, THENCE NORTH 29 DEGREES 01 MINUTES 46 SECONDS EAST A DISTANCE OF 206.13 FEET ALONG SAID WESTERN LINE OF LOTS 1 THROUGH SOUTHERN PART OF LOT 9 TO A POINT, SAID POINT BEING THE SOUTHWEST CORNER OF A TRACT OF LAND NOW OR FORMERLY CONVEYED TO ST. PHILLIPS EVANGELICAL LUTHERAN CHURCH BY DEED RECORDED IN BOOK 6392 ON PAGE 437 OF THE CITY OF ST. LOUIS RECORDER; THENCE SOUTH 59 DEGREES 58 MINUTES 35 SECONDS EAST ALONG THE SOUTHERN LINE OF SAID ST. PHILLIPS EVANGELICAL LUTHERAN CHURCH TRACT A DISTANCE OF 144.99 FEET TO A POINT ON THE WESTERN LINE OF SAID LOT 12 IN CITY BLOCK 3677, SAID POINT BEING THE EASTERN LINE OF A FORMER 15 FEET WIDE ALLEY; THENCE NORTH 29 DEGREES 01 MINUTES 26 SECONDS EAST ALONG THE WESTERN LINE OF SAID LOT 12 TO THE NORTHWESTERN CORNER OF LOT 12 BEING A DISTANCE OF 73 FEET MORE OR LESS ALSO TO THE SOUTHERN LINE OF FORMER VACATED ST. FERDINAND STREET, 50 FEET WIDE; THENCE SOUTH 59 DEGREES 58 MINUTES 35 SECONDS EAST ALONG THE NORTHERN LINE OF SAID LOTS 12 THROUGH 14 A DISTANCE OF 75 FEET TO A POINT IN THE NORTHEASTERN CORNER OF SAID LOT 14; THENCE SOUTH 29 DEGREES 01 MINUTES 46 SECONDS WEST ALONG SAID

Exhibit A

EASTERN LINE OF LOT 14 AND CONTINUING SOUTHWARDLY ACROSS SAID VACATED 15 FEET WIDE FORMER EAST WEST ALLEY AND CONTINUING SOUTHWARDLY ALONG THE EASTERN LINE OF LOT 39 A TOTAL DISTANCE OF 279 FEET MORE OR LESS TO A POINT IN THE NORTHERN LINE OF NORTH MARKET STREET, 50 FEET WIDE; THENCE NORTH 59 DEGREES 58 MINUTES 35 SECONDS WEST ALONG SAID SOUTHERN LINE OF LOTS 39 THROUGH 41 AND CONTINUING ACROSS SAID VACATED 15 FEET WIDE NORTH SOUTH ALLEY AND CONTINUING ALONG SAID SOUTHERN LINE OF LOT 1 TO SAID SOUTHWESTERN CORNER OF SAID LOT, TOTAL DISTANCE OF 220 FEET [^] MORE OR LESS TO THE POINT OF BEGINNING AND CONTAINING APPROXIMATELY 50,813.85 SQUARE FEET OR 1.1665 ACRES MORE OR LESS. EXCEPTING THEREFROM THE PROPERTY CONVEYED BY QUIT CLAIM DEED DATED MARCH 30, 1998 FROM THE CITY OF SAINT LOUIS TO THE ANNIE MALONE CHILDREN AND FAMILY SERVICE CENTER, INCORPORATED, A MISSOURI NOT FOR-PROFIT CORPORATION, WHICH QUIT CLAIM DEED IS RECORDED IN THE REAL PROPERTY RECORDS OF THE CITY OF ST. LOUIS, MISSOURI IN BOOK 1529, PAGE 745 AND MORE PARTICULARLY DESCRIBED THEREIN.

PARCEL C

ALL OF ST. FERDINAND AVENUE (50 FEET WIDE), VACATED BY ORDINANCE 47509, BEING BOUNDED ON THE NORTHWEST BY A LINE BEGINNING AT THE NORTHEAST CORNER OF LOT 12 BLOCK 5 OF ROBERT WASH'S ESTATE, A SUBDIVISION RECORDED IN PLAT BOOK 16, PAGE 5 OF THE CITY OF ST. LOUIS, MISSOURI RECORDS AND IN BLOCK 3677, EXTENDING NORTHEASTERWARDLY TO THE NORTHWEST CORNER OF LOT 41 BLOCK 6 OF SAID ROBERT WASH'S ESTATE AND IN BLOCK 3676, BOUNDED ON THE SOUTHWEST BY LOTS 12 THROUGH 15 BLOCK 5 OF SAID ROBERT WASH'S ESTATE AND IN CITY BLOCK 3677, ON THE NORTHEAST BY LOTS 38 THROUGH 41 BLOCK 6 OF SAID ROBERT WASH'S ESTATE AND IN CITY BLOCK 3676 AND ON THE SOUTHEAST BY A LINE RUNNING PERPENDICULAR FROM THE SOUTHEAST CORNER OF SAID LOT 15, BLOCK 5, TO A POINT ON THE SOUTHWEST LINE OF BLOCK 3676.

Exhibit A

EXHIBIT B

Liens and Encumbrances on Property

[To be added]

EXHIBIT C

Form of Certification to City

[Letterhead of Assignee]

[Date]

Via First-Class Mail

Comptroller's Office
1200 Market Street
City Hall, Room 212
St. Louis, Missouri 63103

**Re: Rent Certification for the Homer G. Phillips Dignity House
Year 2_____**

To Whom it May Concern:

The Assignee, [name of current Tenant], does hereby certify to the City of St. Louis that, in Assignee's opinion, the rent it is currently charging to residential tenants of the multi-family apartment building commonly known as the Homer G. Phillips Dignity House located at 2601 Whittier Street, St. Louis, Missouri 63113 (the "Premises") is, subject to the requirements of any applicable affordability regulatory agreements, reasonable in relation to and does not exceed rent currently being charged in the private market, taking into account the location, size, type, quality, amenities, facilities, management, and maintenance service of the Premises.

[Assignee]

Exhibit C